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THE MARINE ENVIRONMENT PROTECTION COMMITTEE,

RECALLING Article 38(a) of the Convention on the International Maritime Organization concerning the functions of the Marine Envi ronment Protection Committee (the Committee) conferred upon it by international conventions for the prevention and control of marine pollution,

RECALLING ALSO that, at its fifty-eighth session, the Committee adopted, by resolution MEPC.176(58), a revised MARPOL Annex VI (hereinafter referred to as "MARPOL Annex VI") which includes mandatory provis ions that Ozone Depleting Substances and equipment containing such substances be delivered to appropriate reception facilities when removed from ships,

NOTING that regulation 17 of MARPOL Annex VI specifies two types of wastes for which Parties must ensure the provision of reception facilities for ships calling at their ports,

removed from ships,

NOTING that regulation 17 of MARPOL Annex VI specifies two types of wastes for which Parties must ensure the provision of reception facilities for ships calling at their ports,

NOTING ALSO that adequate MARPOL Annex VI reception facilities shall meet the needs of ships calling at a port or terminal without causing undue delay,

HAVING CONSIDERED, at its sixty-second session, the 2011 Guidelines for reception facilities under MARPOL Annex VI, developed by the Sub-Committee on Bulk Liquids and Gases at its fifteenth session,

1. ADOPTS the 2011 Guidelines for reception facilities under MARPOL Annex VI, as set out at annex to the present resolution;

2. INVITES Administrations to take the annexed Guidelines into account when developing and enacting national laws which give fo rce to and implement provisions set forth in regulation 17 of MARPOL Annex VI;

3. REQUESTS the Parties to MARPOL Annex VI and other Member Governments to bring the annexed Guidelines to the attention of port and terminal operators and ship repair and ship recycling facilities, and any other interested groups; and

3. REQUESTS the Parties to MARPOL Annex VI and other Member Governments to bring the annexed Guidelines to the attention of port and terminal operators and ship repair and ship recycling facilities, and any other interested groups; and

4. AGREES to keep these Guidelines under review in light of the experience gained.

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2011 GUIDELINES FOR RECEPTION FACILITIES UNDER MARPOL ANNEX VI

1 INTRODUCTION

1.1 The main objectives of these Guidelines are to:

.1 assist Governments in developing and enacting domestic laws which give force to and implement provisions set forth in regulation 17, Reception Facilities, of MARPOL Annex VI;

.2 assist port and terminal operators and ship repair ports, and ship recycling facilities in assessing the need for and providing adequate reception facilities for Ozone Depletion Substances (ODS) and equipment containing ODS; and

.3 assist port and terminal operators in assessing the need for, and providing

facilities in assessing the need for and providing adequate reception facilities for Ozone Depletion Substances (ODS) and equipment containing ODS; and

.3 assist port and terminal operators in assessing the need for, and providing adequate reception facilities for exhaust gas cleaning residues.

1.2 Adequate MARPOL Annex VI reception facilities shall meet the needs of ships calling at a port or terminal without causing undue delay.

1.3 MARPOL Annex VI, regulation 17 specifies two types of wastes that Parties must ensure the provision of reception facilities for ships calling at their ports:

.1 Ozone Depleting Substances are those defined in MARPOL Annex VI, regulation 2.16; and

.2 Exhaust gas cleaning residues are ship-generated residues that may range from liquid to solid.

2 DEFINITIONS

With reference to regulation 17 of MARPOL Annex VI:

2.1 Remotely located port or terminal means a port or terminal as informed to the Organization under regulation 17.2 of MARPOL Annex VI.

2.2 Manage and process means actions related to the collection, storage, transport, treatment and disposal of ODS and/or exhaust gas cleaning residues such that they are

Organization under regulation 17.2 of MARPOL Annex VI.

2.2 Manage and process means actions related to the collection, storage, transport, treatment and disposal of ODS and/or exhaust gas cleaning residues such that they are rendered in a safe and environmentally benign condi tion in accordance with best available practices.

2.3 Appropriate action means those actions taken by informed Parties to communicate to ships under their control that the advised ports cannot handle certain ODS and/or exhaust gas cleaning residues and those actions ships will need to take necessary to manage or process those substances in an alternative manner. Such alternatives could include arranging for collection before or after visiting the affected port, and in the latter case, ensuring adequate on board storage exists for those substances.

2.4 EGCS residues are a product of the water treatment process. The residue can be formed and removed from the water with different treatment techniques. Such residues contain sulphates, ash/soot, metals and hydrocarbons removed from the water.
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formed and removed from the water with different treatment techniques. Such residues contain sulphates, ash/soot, metals and hydrocarbons removed from the water.

2.5 ODS and equipment containing ODS are as defined in regulation 2.16 and equipment as referred to in regulation 12.4.

3 GENERAL REQUIREMENTS FOR MARPOL ANNEX VI RECEPTION FACILITIES

3.1 Treatment and disposal of ODS and EGCS residues

Taking into consideration its own local and national environmental laws and regulations as well as applicable international regulations and treaties, a Party should adopt strategies for collection, storage, transport, treatment and disposal of ODS and EGCS residues. Strategies for managing MARPOL Annex VI wastes should be safe and environmentally benign and based on industry best practices and best available technologies, and taking into account the local infrastructure. Parties are highly encouraged to make regular updates to

benign and based on industry best practices and best available technologies, and taking into account the local infrastructure. Parties are highly encouraged to make regular updates to the availability of Annex VI reception facilities in the Global Integrated Shipping Information System (GISIS) at: http://gisis.imo.org/Public/.

3.2 Composition of EGCS residues

Residues may contain sulphates, ash/soot, metals and hydrocarbons removed from the wash water. Specifically it may contain sulphite salts (CaSO x) and may also include other metal sulphites (NaSOx and KSOx) and metal oxides and including Vanadium (V), Nickel (Ni), Magnesium (Mg), Aluminium (Al), Iron (Fe), and Silicon (Si).

3.3 Training/certification of personnel

Taking into consideration its own local and national laws and regulations Parties should ensure that personnel who process ODS have been properly trained in all personal protective measures to ensure safe handling of such materials and prevent the release of ODS to the atmosphere. Administrations should develop a certification system whereby letters or certificates are issued to qualified shore side personnel attesting to proper training

ODS to the atmosphere. Administrations should develop a certification system whereby letters or certificates are issued to qualified shore side personnel attesting to proper training for handling ODS and equipment containing ODS and operating disposal equipment. Such equipment should comply with rigorous standards for operation and be certified and/or approved.

3.4 Sufficient capacity for the throughput of trade and the likely volumes to be handled

Parties should undertake to evaluate the types and capacities of ships using their ports and terminals to determine the quantities of ODS and EGCS residues likely to be generated. Parties should ensure that ports and terminals have the capacity to collect and store, if necessary, ODS and EGCS residues from any and all ships that use its ports terminals. If capacity from several ports or terminals, including remotely located ports or terminals, is to be pooled then a Party should ensure that the capacity of such a pooled resource is sufficient for all facilities using it.

3.5 Provision of documentation for custody transfer from ship to reception facility

be pooled then a Party should ensure that the capacity of such a pooled resource is sufficient for all facilities using it.

3.5 Provision of documentation for custody transfer from ship to reception facility

The Organization published MEPC.1/Circ.671, A Guide to Good Practice for Port Reception Facility Providers and Users. This user friendly guidance includes Appendix 2, MEPC.1/Circ.644, Advance Notification Form (ANF); and MEPC.1/Circ.645 Waste Delivery Receipt (WDR). These standard forms may be used by ship masters and port reception facility operators to document the transfer of wastes by type and quantity from ships to shore side reception facilities. When providing advanced notification to a port or terminal that Annex VI reception facilities will be required, the ANF may be used. Where reception facility operators are required to provide to the ship a receipt for ODS and/or EGCS residues, the WDR may be used.
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4 GENERAL REQUIREMENTS APPLICABLE WHEN MARPOL ANNEX VI

WDR may be used.
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4 GENERAL REQUIREMENTS APPLICABLE WHEN MARPOL ANNEX VI RECEPTION FACILITIES ARE NOT AVAILABLE

4.1 Where reception facilities are not provided

Parties must notify the Organization in the event that a port or terminal cannot provide ODS or EGCS residue reception facilities. In addition Parties must notify the Organization where such facilities are, alternatively, provided. Parties are highly encouraged to make regular updates to the availability of Annex VI reception facilities in the Global Integrated Shipping Information System (GISIS) at: http://gisis.imo.org/Public/. Parties that inform the Organization of ports that cannot accept ODS or EGCS residues are encouraged to provide an explanation as to the specific reasons that necessitate such notification.

4.2 Use of regional/bi-lateral agreements

The concept of regional arrangements is encouraged as a possible alternative for ensuring

an explanation as to the specific reasons that necessitate such notification.

4.2 Use of regional/bi-lateral agreements

The concept of regional arrangements is encouraged as a possible alternative for ensuring adequacy of reception facilities. Parties could enter into a regional or bi-lateral arrangement with other Parties in a region that would provide reception facilities to ships travelling in the region. It has been recognized by the Organization that waste management planning on a regional basis and the establishment of regional arrangements can provide an alternative solution for ensuring that ships do not have an incentive to discharge waste into the environment, including the atmosphere, and that ports and terminals within a region can meet the requirements of regulation 17 of MARPOL Annex VI.

4.3 Alternative facilities (required to be reported in accordance with regulation 17.2)

A Party shall report to the Organization when any alternative arrangement is made by a port or terminal to provide ODS or EGCS residue re ception facilities. Additionally, a Party shall report to the Organization where such adequate reception facilities are provided.

or terminal to provide ODS or EGCS residue re ception facilities. Additionally, a Party shall report to the Organization where such adequate reception facilities are provided.

4.4 Criteria for those alternative measures for reception facilities

Criteria for those alternative measures for reception facilities should take into consideration the capacities required to meet the needs of ships calling in their region and without causing undue delay.

4.5 Alternative reception facilities

Alternative reception facilities should hav e an environmentally acceptable method for processing/handling MARPOL Annex VI wastes as outlined in paragraph 5.1.

5 GENERAL REQUIREMENTS FOR SHIPS USING PORTS WHERE RECEPTION FACILITIES ARE NOT AVAILABLE

5.1 Voyage planning and on board storage

Voyage planning should be part of any waste management planning strategy. Masters of ships should ensure that there is adequate on board capacity for storage of all ODS and EGCS residues that may be generated during the course of voyages which include visits to ports or terminals where reception facilities are not available.

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EGCS residues that may be generated during the course of voyages which include visits to ports or terminals where reception facilities are not available.

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5.2 Notifications (according to regulation 17.3)

The Guide to Good Practice for Port Reception Facility Providers and Users (MEPC.1/Circ.671) contains Appendix 1 Revised Consolidated Format for Reporting Alleged Inadequacy of Port Reception Facilities. This standard form may be used by ship masters to report MARPOL Annex VI reception facility inadequacy to the Organization and to the port State through their own flag State Administration.

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2011 GUIDELINES FOR RECEPTION FACILITIES UNDER MARPOL ANNEX VI